Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1288
Claimant:	Gregory Martinez
Adjuster:	Darin Tyler

March 23, 2023
Claim received for a parking lot collision with a knee injury reported by the claimant, who is not represented by an attorney. Initial contact made and claim file opened for review.

April 1, 2023
Reviewed the police report and spoke with two witnesses, who both confirm the vehicles made contact in the parking lot as the claimant described. Photos taken at the scene are on file.

April 25, 2023
Spoke with the other driver, whose account of the impact matches the claimant's description. The damage shown in the photos lines up with the reported point of impact.

June 10, 2023
Confirmed the driver involved is named on the policy and that the policy was in force on the date of loss. Nothing in the file suggests the vehcile damage predates coverage.

June 30, 2023
Claimant described the knee injury and how it happened during a recorded call. The account was consistent with the police report and the witness statements already on file.

August 19, 2023
Reviewed the vehicle appraisal. The damage pattern fits the impact described, and no earlier damage to the vehicle appears in our records or in the inspection notes.

September 2, 2023
Obtained medical records showing the knee ijnury is a plausible result of a collision of this type. No prior injury to the same knee or area appears in the claimant's history.

September 17, 2023
Treatment followed a typical course, with pain and mobility improving steadily, and the provider noted that care is tapering as recovery progresses. Claimant has given the same account of events in every conversatoin so far.

September 25, 2023
Reviewed the file as a whole. Witnesses, photos, the other driver, and the police report all support the accident as described, and the claimant's presence in the vehicle is confirmed. Claim is progressing through standard evaluation.

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Recorded Statement

Claim number:	C-1288
Statement of:	Gregory Martinez
Taken by:	Darin Tyler
Date:	March 22, 2023

Q: Tahnk you for taking the time to give this recroded statement. Please state your full name for the record.

A: I'd rather just keep it to the accident and my injury, if that's okay.

Q: That's fine. For the record, we're speaking about a collision in a parking lot in League City, Texas. Can you describe what happened?

A: I was backing out of a parking space near the store entrance. I checked my mirrors and had just started rolling when another vehicle came down the aisle and clipped my rear quarter panel.

Q: Were you moving slowly?

A: Yes, very slowly. Maybe walking pace. I didn't see the other car until it was already there.

Q: Did the other driver stop?

A: They did. We got out and looked at both cars. Their bumper was scraped, and my rear panel had a dent and a cracked taillight.

Q: Did anyone call for police or file a report?

A: The store manager came out and took our information. I don't think an officer came.

Q: When did you first notice an injury?

A: My right knee. When I stepped down from the car, it buckled a little. By that evening it was swollen and stiff.

Q: Did you seek medical care?

A: I went to an urgent care clinic the next day. They took X-rays and told me to follow up with an orhtopedic doctor.

Q: Had you injured that knee before?

A: Not that I can recall. I play some recreational softball, but nothing serious.

Q: Is there anything else you want to add?

A: Only that I'm still having trouble with stairs and I've missed a few days of work. That's about it.

Q: Thank you. This concludes the statement.